

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #01	CCRB Case #: 201708475	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/07/2017 11:47 PM, Sunday, 10/08/2017 12:00 AM	Location of Incident: § 87(2)(b) and the 83rd Precinct stationhouse	18 Mo. SOL 4/7/2019	Precinct: 83		
Date/Time CV Reported Mon, 10/16/2017 9:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/16/2017 9:41 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Amundsen	12780	960159	083 PCT
2. POM Jonathan Martinez	20330	958881	083 PCT
3. SGT Jackson Seto	00628	934621	083 PCT
4. An officer			083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Genienne Clarke	00000	946678	083 PCT
2. POM Joseph Dionisi	15890	957550	083 PCT
3. POM Michael Burke	21019	958350	083 PCT
4. POF Mary Sobieski	12192	957180	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: On October 7, 2017, at § 87(2)(b) in Brooklyn, an officer stopped § 87(2)(b)	A . Alleged Victim Uncooperative
B . An officer	Abuse: On October 7, 2017, at § 87(2)(b) in Brooklyn, an officer threatened to arrest § 87(2)(b)	B . Alleged Victim Uncooperative
C . POM Michael Amundsen	Force: On October 7, 2017, at § 87(2)(b) in Brooklyn, Police Officer Michael Amundsen used physical force against § 87(2)(b)	C . Unfounded
D . POM Jonathan Martinez	Force: On October 7, 2017, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Martinez used physical force against § 87(2)(b)	D . Unfounded
E . SGT Jackson Seto	Discourtesy: On October 8, 2017, at the 83rd Precinct stationhouse, Sergeant Jackson Seto spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On October 16, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of herself and her niece, § 87(2)(b).

On October 7, 2017, at approximately 11:47 p.m., an unidentified officer allegedly handcuffed § 87(2)(b) in the vicinity of § 87(2)(b) in Brooklyn and told her that she would be arrested if she did not calm down (**Allegations A and B: Abuse of Authority, alleged victim uncooperative**). PO Michael Amundsen and PO Jonathan Martinez of the 83rd Precinct arrested § 87(2)(b) and allegedly lifted her by her hands and feet and threw her into the back seat of a police vehicle (**Allegations C and D: Force, unfounded**). On October 8, 2017, in the holding cell area of the 83rd Precinct stationhouse, Sgt. Jackson Seto allegedly said, “Shut the fuck up, you bitch,” or, “That’s why you’re in here, you bitch” to § 87(2)(b) (**Allegation E: Discourtesy, unsubstantiated**).

There is no video footage in this case. § 87(2)(b) owner of § 87(2)(b), stated that he had footage of the incident, but he was not cooperative in providing this footage to the CCRB and instead sent screenshots of the footage (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: On October 7, 2017, at § 87(2)(b) in Brooklyn, an officer stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On October 7, 2017, at § 87(2)(b) in Brooklyn, an officer threatened to arrest § 87(2)(b)

In her telephone statement on November 30, 2017, § 87(2)(b) (Board Review 02) stated that she heard arguing outside of her residence at § 87(2)(b) in Brooklyn and when she went outside, saw § 87(2)(b) between two parked cars with a group of people surrounding her. § 87(2)(b) tried to diffuse the situation and get the crowd away from § 87(2)(b). Officers arrived on scene, and an unidentified officer placed § 87(2)(b)'s hands behind her back, brought her towards a gate a few steps away, handcuffed her, and told her she would be arrested if she did not quiet down. § 87(2)(b) complied, and she was released without being arrested or summonsed.

§ 87(2)(b) (Board Review 03) made no mention of § 87(2)(b) being present or of anyone being handcuffed besides herself. § 87(2)(b)'s mother, § 87(2)(b) (Board Review 04), stated that § 87(2)(b) entered § 87(2)(b) and told her that officers had § 87(2)(b) in custody, but she made no mention of § 87(2)(b) being handcuffed and did not see anything that occurred before § 87(2)(b) entered the residence.

On November 30, 2017, a call was made to § 87(2)(b) who provided a telephone statement but was unable to schedule an interview during this call because she did not know her work schedule. On December 4, 2017, a second call was made to § 87(2)(b) who was unable to schedule an interview during this call because she was occupied at the moment. On December 8, 2017, a third call was made to § 87(2)(b) and a voicemail was left. On December 11, 2017, a fourth call was made to § 87(2)(b) who again stated that she was unable to schedule an interview during this call. On December 19, 2017, a fifth call was made to § 87(2)(b). There was silence on the other end of the line, and the call

disengaged after approximately five seconds. Letters were sent to § 87(2)(b) on November 22, 2017, November 29, 2017, and December 6, 2017. These letters have not been returned by the United States Postal Service. An e-mail was successfully sent to § 87(2)(b) on December 6, 2017. To date, § 87(2)(b) has not contacted the undersigned to schedule an interview at the CCRB. On February 15, 2018, a search of the NYC Department of Correction database revealed no record of § 87(2)(b) being incarcerated. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **alleged victim uncooperative**.

Allegation (C) Force: On October 7, 2017, at § 87(2)(b) in Brooklyn, Police Officer Michael Amundsen used physical force against § 87(2)(b)

Allegation (D) Force: On October 7, 2017, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Martinez used physical force against § 87(2)(b)

§ 87(2)(b) stated that she was walking home when she encountered her neighbor § 87(2)(b) girlfriend, identified by the investigation as § 87(2)(b) with whom she has an ongoing dispute. § 87(2)(b) had previously consumed two glasses of Hennessy and Coca Cola, but she stated that she was not intoxicated. A dispute ensued, and § 87(2)(b) called 911 because there was “going to be drama.” § 87(2)(b) waved her finger in § 87(2)(b) s face, and § 87(2)(b) bit § 87(2)(b) s finger. A physical altercation involving § 87(2)(b) and additional individuals ensued and resulted in § 87(2)(b) s two front teeth being knocked out. § 87(2)(b) produced a sharp, serrated kitchen knife and stabbed § 87(2)(b) one time in self-defense (she did not know where on his body she stabbed him). Immediately thereafter, six to eight uniformed officers arrived at the scene, and § 87(2)(b) dropped the knife and put her hands behind her back. § 87(2)(b) stated that a uniformed white male officer (no further description) handcuffed her, and then he and another uniformed white male officer (no further description) lifted her off of the ground by her hands and feet, respectively, and threw her into the back seat of a police vehicle, where she landed on her right shoulder. No officer issued § 87(2)(b) any commands at the scene of her arrest. § 87(2)(b) did not allege to have sustained any injury as a result of being thrown into the back seat.

§ 87(2)(b) s sister, § 87(2)(b) stated that she saw the officers place § 87(2)(b) in the back seat, and that an officer pushed § 87(2)(b) s head down and then pushed her into the vehicle. Once inside the vehicle, § 87(2)(b) laid across the seat and began kicking the window. § 87(2)(b) did not see the officers lift § 87(2)(b) off of the ground or do anything besides push her into the vehicle. She was unable to provide physical descriptions of the officers because it was dark outside. § 87(2)(b) was not cooperative in providing a sworn statement to the CCRB.

§ 87(2)(g) § 87(2)(b) stated that a male officer, whom she was unable to describe, pushed § 87(2)(b) down to the ground and “roughed her up” while she was on her back. § 87(2)(b) was unable to describe how § 87(2)(b) was brought to the ground or being roughed up. The officers then lifted her off of the ground and walked her to a police vehicle approximately five houses away. § 87(2)(b) did not see the moment when § 87(2)(b) was placed inside the vehicle. She did not see § 87(2)(b) being lifted off of the ground and was not sure whether § 87(2)(b) was ever thrown through the air.

PO Amundsen and PO Martinez § 87(2)(g) both stated that they placed § 87(2)(b) into their vehicle and that § 87(2)(b) was compliant in approaching and entering the vehicle. Neither recalled § 87(2)(b) being lifted off of the ground, and both denied § 87(2)(b) being thrown onto the vehicle's back seat. Neither recalled any force being used against § 87(2)(b) to place her into the vehicle or § 87(2)(b) kicking the vehicle's windows.

PO Dionisi and PO Burke, both of the 83rd Precinct, were present at the scene of § 87(2)(b)'s arrest, and neither recalled § 87(2)(b) being lifted off of the ground and thrown into the back seat. PO Dionisi stated that he did not see § 87(2)(b) being brought to the police vehicle and that he was not sure whether there was any physical struggle with § 87(2)(b) and PO Burke stated that he did not see the moment when § 87(2)(b) was placed inside the police vehicle.

No Threat, Resistance and Injury Report was prepared for § 87(2)(b) on October 7, 2017 or October 8, 2017 (Board Review 09). § 87(2)(b)

None of § 87(2)(b) screenshots (Board Review 01) show § 87(2)(b) being lifted off of the ground.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **unfounded**.

Allegation (E) Discourtesy: On October 8, 2017, at the 83rd Precinct stationhouse, Sergeant Jackson Seto spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after she was lodged in a holding cell in the female cell area of the 83rd Precinct stationhouse, an overweight, 45-year-old Asian (Chinese or Korean) male officer with black hair and "craters" in his face entered the cell area. § 87(2)(b) asked the officer what he wanted. In response, the officer allegedly stated, "Shut the fuck up, you bitch." § 87(2)(b) also recounted this statement as, "That's why you're in here, you bitch," and, "You bitch, that's why you're going down now."

§ 87(2)(b) stated that she initially saw this officer at the front desk prior to being placed in the cell. At the time, he was in uniform and was with Sgt. Jiayi Wang of the 83rd Precinct, whom § 87(2)(b) identified by name. The 83rd Precinct Roll Call (Board Review 10) revealed a total of nine Asian male officers who were working during Tour 3 of October 7, 2017 and Tours 1 and 2 of October 8, 2017. These officers' photographs were examined at the MOS Photo Viewer. Three of these officers – Sgt. Wang, Sgt. Seto, and PO Michael Decolongon – are East Asian in appearance, and the remaining officers are South Asian in appearance. § 87(2)(b) drew a clear distinction between Sgt. Wang and the subject officer. PO Decolongon was working during Tour 2 and was temporarily assigned to Employee Relations. § 87(2)(g) § 87(2)(b). Sgt. Seto, a § 87(2)(b) Asian male who § 87(2)(b) has

black hair and brown eyes (Board Review 11), was working during Tour 1 in uniform as the Desk Sergeant at the 83rd Precinct stationhouse. Sgt. Seto wrote in his memo book (Board Review 19) that he began working at the desk at 11:05 p.m. on October 7, 2017, and the Prisoner Holding Pen Roster (Board Review 13) states that § 87(2)(b) was placed in a cell at 12:01 a.m. on October 8, 2017. § 87(2)(g)

Sgt. Seto (Board Review 12) had no memory of interacting with § 87(2)(b) and did not recognize § 87(2)(b) when shown her photograph. He stated that he did not change out of his uniform until the end of his tour at 8:02 a.m., and that he would not ever enter the cell area after changing out of his uniform. Sgt. Seto denied calling § 87(2)(b) a “bitch” and saying, “Shut the fuck up, you bitch,” and, “That’s why you’re in here, you bitch,” to § 87(2)(b).

The Prisoner Holding Pen Roster (Board Review 13) does not list any female arrestees who would have witnessed Sgt. Seto’s alleged statement. The Roll Call for Tour 1 of October 8, 2017 does not list any Cell Attendant as being on duty.

Patrol Guide Procedure 203-09 (Board Review 14) states that officers must “be courteous and respectful.”

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two additional CCRB complaints and has been named as a victim in four additional allegations (Board Review 15).
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 15).
- PO Michael Amundsen has been a member-of-service for two years and has been a subject in one additional CCRB complaint and four additional allegations, none of which were substantiated (Board Review 16).
 - 201710282 involved an allegation of force (physical force). To date, this investigation is still open.
- PO Jonathan Martinez has been a member-of-service for two years and has been a subject in two additional CCRB complaints and five additional allegations, none of which were substantiated (Board Review 16).
 - 201705719 involved an allegation of force (physical force), which was unsubstantiated.
 - 201710282 involved an allegation of force (physical force). To date, this investigation is still open.

- Sgt. Jackson Seto has been a member-of-service for 13 years and has been a subject in one additional CCRB complaint and one additional allegation, which was not substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 17).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date